

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC046583: CHRISTOPHER T TAYLOR vs FCA US LLC, et al.

07/07/2026 in Department 44

Demurrer to Plaintiff's Second Amended Complaint

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant, FCA US, LLC's ("Defendant") Demurrer to Plaintiff Christopher T. Taylor's ("Plaintiff") Second Cause of Action for Fraudulent Concealment in the Second Amended Complaint ("SAC")

Tentative Ruling:

The Demurrer is OVERRULED.

As previously discussed in the Court's ruling on Defendant's demurer to the fraudulent concealment cause of action in the FAC, "In order to rely on the discovery rule for delayed accrual of a cause of action, [a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. [citation omitted] In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to show diligence; conclusory allegations will not withstand demurrer." (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808 [internal citation and quotation marks omitted].)

The SAC now adds the allegation that Plaintiff “only discovered Defendant FCA's wrongful conduct around January 28, 2025, when he was driving on the freeway, heard a loud pop noise, the vehicle began to shake uncontrollably, and the brakes did not function properly,” resulting in “an accident, putting Plaintiff's life at risk,” and leading him to investigate further. (SAC ¶20). The new allegation at paragraph 20 combined with previously asserted allegations concerning why Plaintiff did not make the discovery earlier despite his reasonable diligence, e.g., Defendants’ continued representations that the vehicle had been repaired and was working as designed (See SAC, ¶¶ 15-18, 21, 55-58), is sufficient to state a cause of action for fraud by concealment.

Defendant shall file an answer to the SAC within 20 days.

Plaintiff to give notice.